

Tarun Kumar Pathak v. State of U.P. And 4 Others

Allahabad High Court · Single Judge · 23 September 2022 · Writ - A No. 15140 of 2022 · **Writ petition dismissed; challenge to the consequential recovery order of 05.08.2022 refused as not maintainable during the pending statutory appeal against the 06.07.2021 punishment; prayer to expedite that appeal also refused; no interim relief**

HEADNOTE

A writ to quash a recovery order that only specifies the method of recovering a loss already directed in a disciplinary punishment is not maintainable while the statutory appeal against that punishment is pending. The 05.08.2022 order of respondent no. 4 was held to be consequential to the 06.07.2021 dismissal-and-recovery of an Executive Engineer of Paschimanchal Vidyut Vitran Nigam Ltd.; following Government of Maharashtra v. Deokar's Distillery, a consequential order cannot be independently challenged. Because the writ was not maintainable, no interim relief could be granted (State of Orissa v. Madan Gopal Rungta; Bharat Aluminium Co. v. Kaiser Aluminium Technical Services Inc.: an interlocutory injunction is not a cause of action and cannot stand on its own). Mool Chand Yadav v. Roza Buland Sugar Mills was distinguished: there the stay application in the statutory appeal had been rejected, so implementation would have rendered the appeal infructuous; that was not this case. The second prayer, to direct the Board of Directors of U.P. Power Corporation Ltd. to decide the pending appeal expeditiously, was also refused for want of a maintainable writ. The Court did not examine the Thirteenth Amendment of the Supply Code, the charge of releasing a single-point connection, or the quantum of recovery.

FACTUAL SUMMARY

Tarun Kumar Pathak, Assistant Engineer from 2012 and Executive Engineer from September 2017 in Paschimanchal Vidyut Vitran Nigam Ltd., was posted at Noida from 06.02.2020 to 06.07.2021. He released a 33 kV feeder from 220/132 kV S/S Sector-129, Noida, giving 10,000 kVA single-point supply to M/s 3 Projects Pvt. Ltd. for the Lotus Zing multi-storey project at GH-01A, Sector 168, Noida, on an application pending since 2011. The judgment records that the Thirteenth Amendment of the U.P. Electricity Supply Code required conversion of single-point connections in multi-storey buildings to multi-point.

He was charge-sheeted, dismissed on 06.07.2021, and directed to recover 8% supervision charges of Rs. 4,66,764. He appealed to the Board of Directors of U.P. Power Corporation Ltd. on 01.08.2022. While that appeal was pending, respondent no. 4 issued a recovery order dated 05.08.2022 specifying the method of recovery. He sought quashing of that order and a direction to decide the appeal expeditiously.

HOLDING-UNITS

INTERPLAY · OFFTOPIC::service-law-natural-justice

Writ not maintainable against a consequential recovery order while the statutory appeal against the parent punishment is pending; no interim relief

QUESTION

Can an Executive Engineer maintain a writ to quash a later recovery order that only specifies the method of recovering a loss already directed in a dismissal order, while his statutory appeal against that dismissal is pending, and obtain interim stay of the recovery?

HOLDING

No. The 06.07.2021 punishment both dismissed the petitioner and directed recovery of the loss (8% supervision charges of Rs. 4,66,764). The 05.08.2022 order was only consequential: it pointed out the manner of recovery because the punishment had not specified how the sum was to be recovered. The petitioner had already availed the statutory appeal to the Board of Directors. Following Deokar's Distillery, a writ to quash a consequential order is not maintainable. Because the writ itself was not maintainable, no interim relief could be granted (Madan Gopal Rungta; BALCO: a right to an interlocutory injunction is not a cause of action and cannot stand on its own). Mool Chand Yadav was distinguished: there a stay application

in the statutory appeal had been rejected, so giving effect to the impugned order would have made the appeal infructuous; that was not the case here. The writ petition was dismissed. ¶ 6-11

QUALIFIER

The Court did not stay recovery, did not decide the appeal, and did not hold that a pending statutory appeal is always a complete bar if stay in that appeal has been refused.

FLAG Off-topic for the Supply Code. The Thirteenth Amendment (single-point to multi-point in multi-storey buildings) appears only as the backdrop of the disciplinary charge; no Code clause is construed. Source is an unnumbered 23.9.2022 order (Sangeeta Chandra, J., Court No. 37). Pins are sequential blocks: (1) heard; (2) prayers I–II; (3) appointment, promotion, Noida posting 06.02.2020–06.07.2021; (4) 33 kV / 10,000 kVA single-point release to M/s 3 Projects Pvt. Ltd. (Lotus Zing) and the 13th Amendment; (5) charge-sheet, dismissal and recovery 06.07.2021, appeal, recovery order 05.08.2022; (6) respondents: 05.08.2022 consequential, method of recovering 8% supervision charges of Rs. 4,66,764; (7) respondent no. 2: statutory remedy availed, writ against consequential order not maintainable (Deokar's Distillery); (8) Court: writ not maintainable so no interim (Madan Gopal Rungta; BALCO quote); (9) petitioner cites Mool Chand Yadav; (10) distinguished — stay in that statutory appeal had been refused; (11) not this case; writ dismissed; (12) second prayer pressed; (13) prayer (ii) refused. OCR renders the developer as 'M/s.3 Projects Pvt. Ltd' and BALCO as Madan Gopal 'has been in' BALCO; recorded as the judgment states it.

INTERPLAY · OFFTOPIC::service-law-natural-justice

Mandamus to expedite a pending Board appeal refused where the writ itself is not maintainable

QUESTION

If the writ to quash the consequential recovery is not maintainable, can the Court still direct the Board of Directors to decide the pending statutory appeal expeditiously?

HOLDING

No. After dismissal of the writ, counsel pressed the second prayer for a direction to the Board of Directors of U.P. Power Corporation Ltd. to decide the appeal filed on 01.08.2022. In the absence of any statutory right of the petitioner to maintain the writ, the Court held it could not grant the prayer in relief clause (ii). ¶ 12-13

FLAG Paragraph pins are those mapped in the first holding unit. The Court did not fix any outer limit for the Board appeal and did not consider the appeal on the merits.

PRINCIPLE TAGS

recovery-demand-notice-is-consequential-not-independently-challengeable The 05.08.2022 recovery order was held to be only a consequential specification of the method of recovering the loss already directed in the 06.07.2021 punishment. A writ to quash that consequential order, while the parent punishment was under statutory appeal, was not maintainable. Same cluster as SCJ-3177 and SCJ-3238, applied here to a service-law recovery rather than a consumer assessment. Lead authorities: *Government of Maharashtra v. Deokar's Distillery*. ¶ 6-8, 11

writ-dismissed-statutory-appeal-left-open The petitioner had already appealed the 06.07.2021 dismissal to the Board of Directors on 01.08.2022. The writ against the later recovery order was dismissed as not maintainable; the pending statutory appeal was left to run, and a prayer to expedite it was refused. Lead authorities: *Government of Maharashtra v. Deokar's Distillery*. ¶ 5, 7, 11-13

no-interim-relief-when-writ-not-maintainable Having held the writ not maintainable, the Court refused interim stay of the 05.08.2022 recovery. An interlocutory injunction is not a cause of action and cannot stand on its own. Mool Chand Yadav was distinguished because, unlike that case, stay in the statutory appeal had not been refused so as to render the appeal infructuous. Lead authorities: *State of Orissa v. Madan Gopal Rungta, Bharat Aluminium Co. v. Kaiser Aluminium Technical Services Inc.*. ¶ 8-11

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER RELEASING THE 10,000 KVA SINGLE-POINT CONNECTION AFTER THE THIRTEENTH AMENDMENT OF THE U.P. ELECTRICITY SUPPLY CODE WAS MISCONDUCT, AND WHETHER THAT AMENDMENT REQUIRED CONVERSION OF AN EXISTING OR PENDING SINGLE-POINT SUPPLY IN A MULTI-STOREY BUILDING TO MULTI-POINT

Recorded only as the backdrop of the charge. No Code clause (including Clause 4.9 or the 2018 Thirteenth Amendment) was construed. ¶ 4-5

NOT DECIDED — VALIDITY OF THE 06.07.2021 DISMISSAL AND OF THE DIRECTED RECOVERY OF 8% SUPERVISION CHARGES OF RS. 4,66,764

Left to the pending statutory appeal before the Board of Directors. The writ did not challenge the punishment as the primary order. ¶ 5-7, 11-13

NOT DECIDED — WHETHER RECOVERY PENDING THE BOARD APPEAL WOULD RENDER THAT APPEAL INFRUCTUOUS, SO AS TO ATTRACT MOOL CHAND YADAV

Distinguished on the facts (stay in that statutory appeal had been refused). The Court did not decide a general exception to Deokar's Distillery. ¶ 9-11

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Government of Maharashtra v. Deokar's Distillery</i> 2003 (5) SCC 669 Supreme Court of India	Cited for the proposition that a writ to quash a consequential order is not maintainable. Applied so that the 05.08.2022 recovery order, which only specified the method of recovering the loss already directed in the 06.07.2021 punishment, could not be independently challenged while the statutory appeal against that punishment was pending.		Respondent	Followed
<i>State of Orissa v. Madan Gopal Rungta</i> 1952 SCR 28 Supreme Court of India (Constitution Bench)	Cited for the proposition that when the writ petition is not maintainable, no interim relief can be granted while dismissing it.		Court	Followed
<i>Bharat Aluminium Co. v. Kaiser Aluminium Technical Services Inc.</i> 2012 (9) SCC 552 Supreme Court of India	Quoted, as applying Madan Gopal Rungta, for the observation that a right to obtain an interlocutory injunction is not a cause of action and cannot stand on its own.		Court	Followed
<i>Mool Chand Yadav v. Roza Buland Sugar Mills</i> 1980 (3) SCC 484 Supreme Court of India	Cited for the proposition that if a statutory appeal is decided in the appellant's favour after the impugned order has been given effect, the appeal becomes infructuous. Distinguished: in that case a stay application in the statutory appeal had been rejected; that was not the case here.		Petitioner	Distinguished

SCJ-3258 · Tarun Kumar Pathak v. State of U.P. And 4 Others · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.